Syllabus

HENCELY *v.* FLUOR CORP. ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 24–924. Argued November 3, 2025—Decided April 22, 2026

Military contractor Fluor Corporation hired Ahmad Nayeb to work at a U. S. base in Afghanistan as part of the "Afghan First" initiative, a military program that required contractors to hire Afghans to help stimulate the local economy and stabilize the Afghan Government. Nayeb, a Taliban operative, later carried out a suicide-bomb attack at the base that killed 5 and wounded 17. The Army's investigation found Fluor primarily responsible for the attack because it negligently supervised Nayeb in complying with base procedures. Former Army specialist Winston T. Hencely, who suffered a fractured skull and brain injuries in the course of stopping Nayeb before he could reach a larger crowd, sued Fluor in the United States District Court for the District of South Carolina seeking damages under South Carolina law for negligent supervision, negligent entrustment of tools, and negligent retention of Nayeb. The District Court entered summary judgment for Fluor, and the Fourth Circuit affirmed. It held that during wartime, state-law claims against military contractors under military command arising out of combatant activities are preempted. The Fourth Circuit reasoned that the Federal Tort Claims Act's combatant-activities exception, which preserves the Federal Government's immunity against claims "arising out of the combatant activities of the military" during wartime, 28 U. S. C. §2680(j), also reflects a congressional intent to bar tort suits against contractors connected with those combatant activities, even when the contractor is alleged to have violated its instructions from the military.

Preliminary Prepublication

Held: The Fourth Circuit erred in finding Hencely's state-law tort claims preempted where the Federal Government neither ordered nor authorized Fluor's challenged conduct. Pp. 37–48.

(a) Neither the Constitution nor any federal statute expressly preempts Hencely's suit. The Supremacy Clause requires state law to yield only when it conflicts with rights or restrictions that stem from the Constitution or a valid federal statute or treaty. *Kansas* v. *Garcia*, 589 U. S. 191, 202. Here, no constitutional provision or federal statute expressly preempts Hencely's suit. And the Court has already held that the FTCA's combatant-activities exception does not itself apply to

suits against federal contractors. See *United States* v. *Orleans*, 425 U. S. 807, 813–814. Pp. 37–48.

(b) Lacking any constitutional or statutory text supporting preemption, the Fourth Circuit relied on *Boyle* v. *United Technologies Corp.*, 487 U. S. 500. *Boyle* does not support the Fourth Circuit's preemption rule. *Boyle* involved a procurement contract, not a performance contract like the one here, and it did not involve the FTCA's combatant-activities exception. More importantly, *Boyle* recognized displacement of state law only when there is a "significant conflict" between state law and "an identifiable federal policy or interest." *Id.*, at 507 (internal quotation marks omitted). *Boyle* accordingly protects a contractor only when the Government directed the contractor to do the very thing challenged in the suit. *Correctional Services Corp.* v. *Malesko*, 534 U. S. 61, 74, n. 6. Hencely, by contrast, sued Fluor for conduct that was not authorized by the military and was allegedly contrary to federal instructions. *Boyle*'s reasoning thus contradicts the Fourth Circuit's analysis. Even assuming a "uniquely federal interest" in regulating military bases overseas, no "significant conflict" exists between that interest and state-law negligence liability based on a contractor's departure from military instructions. *Boyle*, 487 U. S., at 507. Pp. 38–43.

(c) The Fourth Circuit's preemption test sweeps too broadly. The FTCA's combatant-activities exception protects the Government's own combat-related decisions. Any comparable federal interest would therefore preempt state law only where the challenged conduct can fairly be treated as the military's *own* conduct or decision. But the Fourth Circuit expressly concluded that resolving Hencely's claims would not require evaluating the reasonableness of military judgments, and it nonetheless found preemption simply because the suit arose in a wartime combat setting. *Boyle*'s rationale justifies no such blanket preemption. Pp. 43-45.

(d) Nor does the Constitution's structure implicitly bar this suit. Although the Constitution gives Congress and the President broad war powers, that assignment has never been understood to bar all war-related tort suits. And federal contractors do not automatically share the Government's immunity merely because they perform services for it. Absent a statute to the contrary, States can regulate or tax federal contractors on the same terms as any private company. See, *e. g.*, *James Stewart & Co.* v. *Sadrakula*, 309 U. S. 94, 104. Fluor does not attempt to, and could not, invoke a defense under *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18. The *Yearsley* doctrine shields a contractor only when it is being sued precisely for accomplishing what the Federal Government requested. Because Fluor is alleged to have acted outside the authority the military granted it, *Yearsley* does not apply. Pp. 45–48.

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120 F. 4th 412, vacated and remanded.

THOMAS, J., delivered the opinion of the Court, in which SOTOMAYOR, KAGAN, GORSUCH, BARRETT, and JACKSON, JJ., joined. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., and KAVANAUGH, J., joined, *post*, p. 49.

Frank H. Chang argued the cause for petitioner. With him on the briefs were *Tyler R. Green*, *Thomas R. McCarthy*, *Taylor A. R. Meehan*, *Cody Ray Milner*, *James E. Butler, Jr.*, *W. Andrew Bowen*, *Paul W. Painter III*, *Stephen D. Morrison III*, and *Robert H. Snyder, Jr.*

Mark W. Mosier argued the cause for respondents. With him on the brief were *Daniel L. Russell, Jr.*, *Raymond B. Biagini*, and *Kendall T. Burchard*.

Deputy Solicitor General Gannon argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Joshua Y. Dos Santos*, *Brad Hinshelwood*, and *Lowell V. Sturgill, Jr.**

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*Briefs of *amici curiae* urging reversal were filed for the State of West Virginia et al. by *John B. McCuskey*, Attorney General of West Virginia, and *Michael R. Williams*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Tim Griffin* of Arkansas, *Kathleen Jennings* of Delaware, *James Uthmeier* of Florida, *Raúl Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Keith Ellison* of Minnesota, *Lynn Fitch* of Mississippi, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Raúl Torrez* of New Mexico, *Jeff Jackson* of North Carolina, *Gentner Drummond* of Oklahoma, *Dan Rayfield* of Oregon, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, and *Ken Paxton* of Texas; for the American Association for Justice by *Jeffrey R. White* and *Bruce Plaxen*; for the Center for Military Law and Policy et al. by *Noah Heinz* and *Harvey Weiner*; for Public Citizen by *Scott L. Nelson* and *Allison M. Zieve*; and for the Veterans of Foreign Wars of the United States by *Peter B. Rutledge* and *Hillary K. Lukacs*.

Briefs of *amici curiae* urging affirmance were filed for the Atlantic Legal Foundation by *Lawrence S. Ebner*; for the Chamber of Commerce of the United States of America by *Elbert Lin*, *Maya M. Eckstein*, *David*

JUSTICE THOMAS delivered the opinion of the Court.

In 2016, a Taliban operative working for respondent Fluor Corporation, a military contractor, carried out a suicide-bomb attack at Bagram Airfield in Afghanistan. After then-Army Specialist Winston T. Hencely confronted him, the bomber detonated his suicide vest. As a result of the injuries he received, Hencely is now permanently disabled. In an effort to recover damages for his injuries, Hencely sued Fluor, bringing state-law tort claims for negligently retaining and supervising the attacker. According to Hencely and the United States military, Fluor's conduct was not authorized by the military and even violated instructions the military had given it as a condition of operating on the base.

Fluor argues that federal law preempts Hencely's suit. But, no statute or constitutional provision expressly does so. And, our precedent suggests that state law is generally not preempted when the "contractor could comply with both its contractual obligations" to the military and state law—unlike when the state-imposed duty "is precisely contrary to the duty imposed by the Government contract." *Boyle* v. *United Technologies Corp.*, 487 U. S. 500, 509 (1988). However, the United States Court of Appeals for the Fourth Circuit held that federal law preempts Hencely's suit based on a different rule: During wartime, all state-law claims against military contractors under military command arising out of combatant activities are preempted regardless of whether any conflict exists between the military's instructions and state law. 120 F. 4th 412, 426 (2024). We disagree. The preemption rule on which the Fourth Circuit relied lacks any foundation in the Constitution, federal statutes, or our precedents.

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M. Parker, and *Jonathan D. Urick*; and for Retired Senior Military Officers by *Jeffrey B. Wall*.